

HINDUSTAN TIMES

CTION

By Kaushik Deka

72.7%
REGISTERED CRIMINAL CASES IN WHICH POLICE MANAGED TO FILE CHARGE-SHEETS

54%
CRIMINAL CASES IN WHICH CONVICTIONS WERE SECURED SUCCESSFULLY

37.7%
THE CONVICTION RATE IN MURDER CASES, EVEN AS CHARGE-SHEETS WERE FILED IN 85.7%

Source: NCRB's 'Crime in India 2023' report

all seven accused in the 2008 Malegaon bomb blast case, including former BJP MP Pragya Singh Thakur and Lieutenant Colonel Prasad Purohit. Seventeen years after the attack, which killed six people near a mosque during Ramzan, the judge concluded that there was only "strong suspicion", but no proof.

Across these cases, one theme is unmistakable: the real perpetrators remain unidentified, not because they have evaded the law, but because the system meant to catch them has faltered, thanks to botched investigations, compromised evidence and procedural failures. Alarmed by the declining quality of police investigations and low conviction rates in criminal cases, the Supreme Court in September 2023 advocated a national "code of investigation". Nearly two years later, on August 5 this year, the court issued an unusually blunt criticism: the system, it said, had become reliant on the "optics" of arresting and jailing suspects while neglecting scientific investigation, institutional reform and witness protection.

The numbers reveal the depth of the problem. The National Crime Records Bureau's 'Crime in India 2023' report shows that the national charge-sheeting rate has slipped from 79.6 per cent in 2014 to 72.7 per cent. In major metros, it's just 51.7 per cent. Even in serious offences, outcomes remain weak: the conviction rate for murder is just 37.7 per cent despite an 85.7 per cent charge-sheeting rate. In Maharashtra, where both the Malegaon and Mumbai terror blasts took place, the conviction rate in criminal cases is 49.1 per cent, below the national average of 54 per cent. Uttar Pradesh, despite a stronger criminal justice record with a conviction rate of 75 per cent, failed spectacularly in the Nithari case. Central agencies show a similar slide. The Central Bureau of Investigation (CBI) filed closure reports in 174 cases in 2024 for want of evidence—the highest in any year. In the previous two years combined, it had filed only 94.



"In most cases, investigations do meet high standards. Whether a case results in conviction depends on how the court evaluates the evidence"

RAKESH ASTHANA
Former Special Director, CBI, & Police Commissioner, Delhi

POLICE STRETCHED THIN

Much of the problem begins with a basic arithmetic failure. India has just 155 police officers per 100,000 people—far below the 222 recommended by the United Nations, and even its own sanctioned strength of 197. Some states fare far worse: Bihar, for instance, functions with only 81. The result is predictable. Investigating officers juggle multiple serious crimes while simultaneously managing VIP movements, crowd control and riot response. Add to that the paperwork, and they are left with little time for thorough evidence-collection or witness-tracking. In rural areas, where a single police station may cover over 300 sq. km, officers often struggle even to reach crime scenes on time. A senior Delhi Police officer, speaking to INDIA TODAY on condition of anonymity, breaks it down: "A thorough investigation requires visiting crime scenes, collecting physical evidence, interviewing witnesses, documenting statements, coordinating with forensic experts and maintaining the chain of custody for evidence. Now, divide the working hours in a month by several hundred cases..."

Compounding the problem is the absence of a dedicated detective cadre. Unlike in many developed countries, India relies on general-